

26STCV09479 26STCV09479

County: los-angeles

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Case Number: 26STCV09479 Hearing Date: September 16, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 16, 2026

Case Name: Leon v. Torres, et al.

Case No.: 26STCV09479

Matter: Demurrer

Moving Party: Defendants Victoria Torres, Maria Santos Isabel, and Reynaldo Salgado

Sotelo

Responding Party: Plaintiff Maria Leon

Notice: OK

Ruling: The Demurrer is sustained in part, without leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On March 24, 2026, Plaintiff Maria Leon filed the operative Complaint for (1) intentional misrepresentation, (2) financial elder abuse, (3) constructive trust, and (4) quiet title.

Defendants Victoria Torres, Maria Santos Isabel, and Reynaldo Salgado Sotelo now demur to the entirety of the Complaint for uncertainty and failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirdaç (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Fraud

Defendants argue that fraud is not pleaded with specificity as to them because the physical speakers of the misrepresentations were non-moving Defendants Raul Gonzalez and Sonia Quezada Flores. However, Plaintiff sufficiently pleads vicarious liability under a civil conspiracy theory.

A civil conspiracy requires (1) the formation and operation of the conspiracy, (2) illegal operation by the parties, and (3) damage resulting from the operation (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 511). Because direct evidence of a clandestine agreement is rarely available, a conspiratorial agreement may be tacit and inferred from the nature of the acts, the relation of the parties, and the economic interests involved (Wyatt v. Union Mortgage Co. (1979) 24 Cal.3d 773, 784–785).

Here, Plaintiff alleges that Isabel, Torres, and Sotelo had full knowledge of the falsity of the statements, were present (Isabel) when the misrepresentations were made to Plaintiff, agreed with Raul and Sonia that the statements be made to induce reliance, and actively participated in the financial proceeds of the fraud—specifically taking record title (Torres/Sotelo) and taking ongoing rental income generated by the property (Isabel). Accepting these well-pled facts and reasonable inferences as true, Plaintiff has adequately alleged Defendants' concurrence in the fraudulent scheme. The specific details regarding dates, instruments, and property descriptions provide adequate notice. The Demurrer is overruled as to the first cause of action.

Elder Abuse

The elements of a cause of action for financial elder abuse are (1) the defendant took, hid, appropriated, obtained or retained plaintiff's property; (2) plaintiff is at least 65 years of age or a dependent adult; (3) the defendant took, hid, appropriated, obtained or retained plaintiff's property for a wrongful use, with the intent to defraud, or by undue influence; (4) the plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing plaintiff's harm. (See CACI No. 3100.)

Plaintiff alleges she is a 71-year-old, Spanish-speaking elder who was ill and medicated. Plaintiff explicitly alleges that Defendants acted in concert to obtain title to her property and encumber it via misrepresentations and undue influence, and that Isabel actively assists in retaining the property's fruits by collecting rental income generated from the unlawful taking. This satisfies the statutory elements at the pleading stage. The Demurrer is overruled as to the second cause of action.

Constructive Trust

A constructive trust is an equitable remedy to prevent unjust enrichment, not an independent, standalone substantive cause of action (*Batt v. City and County of San Francisco* (2007) 155 Cal.App.4th 65, 82). Plaintiff concedes that constructive trust is equitable relief. The Demurrer to this standalone count is sustained without leave to amend; however, Plaintiff may seek constructive trust as a remedy in her Prayer for Relief.

Quiet Title

As to Defendants Torres and Sotelo, the Verified Complaint satisfies Code of Civil Procedure section 761.020 by stating the street address, APN, legal description, basis of equitable title, adverse record claims of Torres and Sotelo, and the date for determination. The Demurrer is overruled as to these Defendants.

As to Defendant Isabel, quiet title lies only against those who claim an adverse legal or equitable title, lien, or estate in the real property itself (Code Civ. Proc. § 761.020). Because Isabel is not apparently a record owner on title and holds no adverse estate or security interest in the realty, quiet title cannot lie against her despite her alleged receipt of rental proceeds. The Demurrer is sustained without leave to amend as to Isabel only.

Summary

The Demurrer is overruled as to the first and second causes of action.

The Demurrer is sustained as to the third cause of action, without leave to amend. The prayer for relief remains.

The Demurrer of Defendants Torres and Sotelo is overruled as to the fourth cause of action.

The Demurrer of Isabel is sustained as to the fourth cause of action, without leave to amend.

Defendants are to file an answer within 10 days.

Moving party to give notice.